Sarvesh Yadav vs State, Special Cell Delhi Police on 3 July, 2024

Author: Dinesh Kumar Sharma

Bench: Dinesh Kumar Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 1515/2024
SARVESH YADAV
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STATE, SPECIAL CELL DELHI POLICE .
Through: Mr. Yudhvir Singg
for State.

CORAM:
HON'BLE MR. JUSTICE DINESH KUMAR SHARMA
OR

% 03.07.2024

1. The present application has been filed under Section 439 Cr.P.C. for grant of regular bail on behalf of the accused Sarvesh Yadav in case FIR No. 94/2024 registered at Special Cell, Delhi Police, Under Sections 232/243/120B IPC.

2. Allegedly, the Special Cell, Delhi Police received an information from secret source about the circulation of Fake Indian Currency Coins in Delhi NCR. Pursuant to this, a raid was conducted at Gali No. 8, Uttarkhand Enclave, Part II, Burari, Delhi. During the raid the petitioner and another person namely, Akash were caught on a scooty carrying counterfeit Indian Currency.

3. Allegedly, petitioner was found receiving parcels containing similar counterfeit coins.

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4. In the raid, eight packets containing 500 fake Indian currency coins of denomination Rs. 20/- amounting to Rs. 80,000/- were recovered. Upon instructions, the coins were identified as counterfeit due to their lighter weight and shinier appearance compared to be genuine coins. The prosecution has alleged that both the suspects have admitted their involvement in the manufacturing of counterfeit coins.

5. Learned counsel for the petitioner is seeking bail on the ground that the petitioner is in custody since 30.03.2024. It has been submitted that the allegations against the petitioner are false, fabricated, concocted and devoid of any merits. It has further been submitted that the articles recovered during the raid in fact belong to Akash. It has further been submitted that antecedents of the petitioner are here.

6. Learned APP for the State has opposed the bail application on the ground that the accused was found to be involved in the serious offence. It has been submitted that he was found red handed in possession of the counterfeit currency coins. It has further been submitted that at the instance of co-accused Akash, the raid was conducted and further recovery of 500 counterfeit Indian Currency Coins of denomination of Rs. 20/- wrapped in a white color polybag having "flipkart" branding on it was made.

7. It has further been submitted that at the factory premises, three cylindrical shaped metallic dyes having "Ashok Stambh" made and "India" and " " engraved in mirror image on one end and plane on other end of each and two cylindrical shaped metallic dyes having "75th Year of Independence" and "2023" and "20" and " This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 08/07/2024 at 21:18:52 " engraved in mirror image on one end and plane on other end were also recovered at the instance of accused Akash.

8. Learned APP for the State has also submitted that in the factory premises, one Fiber Laser Machine along with its CPU, one 40 Ton Hydraulic Press Machine and one 30 Ton Hydraulic Press Machine were also recovered on the instance of the accused Akash and the same were seized as piece of evidence. The raw material of 433 Kilograms was also recovered.

9. Section 232 of the IPC provides as under:

> "Whoever counterfeits, or knowingly performs any part of the process of counterfeiting Indian coin, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine."

10. The bare perusal of Section 233 makes it clear that the punishment has been provided for counterfeiting or performance of any part of the process of counterfeiting knowingly is punishable.

11. Section 243 IPC provides as under:

> "Whoever, fraudulently or with intent that fraud may be committed, is in possession of counterfeit coin, which is a counterfeit of Indian coin, having known at the time when he became possessed of it that it was counterfeit, shall be punished with imprisonment of either description for a term which may extend to seven years, and

shall also be liable to fine."

12. Section 243 provides punishment for the possession of counterfeit coin knowingly. The punishment provided under Section 243 is seven years along with fine.

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13. It is pertinent to mention here that IO has submitted that the CDR of the petitioner has indicated his presence on the spot.

14. I consider that the offence alleged against the petitioner is serious in nature. The possession of counterfeit currency is a serious offence which directly hampers the economy of the country at larger level. On the macro level, in facts it cheats the thousands of people who uses the same as a genuine currency coin.

15. I consider that the application is liable to be dismissed However, it is a prima facie opinion and nothing expressed herein shall tantamount to be an expression of the court.

DINESH KUMAR SHARMA, J JULY 3, 2024/AR..

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